

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-19

Served: November 8, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

Scheduling Order

On November 6, 2024, the parties filed their first Joint Status Report (“JSR 1”) pursuant to the undersigned’s October 24, 2024 Order Denying Motion to Dismiss (“Order on MTD”). The order denied the motion to dismiss as moot and ordered Respondent Flexport International LLC (“Flexport”) to file an Answer to Peloton Interactive, Inc.’s (“Peloton”) Amended Complaint by October 29, 2024. It further ordered “that the parties submit a Joint Status Report by November 6, 2024, as set forth in the Initial Order and including a proposed discovery schedule that allows for the Initial Decision to issue by May 8, 2025, as set by the Commission.” Order on MTD at 1 (citation omitted). Flexport filed the answer, and the parties filed the JSR 1 on the respective dates ordered.

As an initial matter, Peloton requests an oral hearing. Pursuant to 46 C.F.R. Section 502.62 (a)(5), “[t]he presiding officer will determine whether an oral hearing is necessary.” At this point in the proceeding, it is not clear that there is reason to conduct an oral hearing. Accordingly, Peloton’s request for oral hearing is **DENIED**.

The parties have provided few deadlines in their proposed discovery schedule and propose concluding briefing over a month after the date the Commission set for issuance of the Initial Decision. JSR 1 at 2. While the proposed schedule concludes discovery exactly 150 days after the filing of Respondent’s answer, the filing of a dispositive motion and amended complaint delayed the filing of the answer. The delay created by the motion, subsequent orders, and amended complaint may warrant an extended schedule, but the parties provide insufficient information in the JSR 1 to support a finding of good cause. The parties’ have attached over 200 pages of documents to their respective pleadings in furtherance of their positions, but whether they anticipate extensive discovery is not clear from the JSR 1. The proposed discovery schedule is not reasonable and is modified to allow for issuance of the Initial Decision by May 8, 2025, as was instructed in the Order on MTD. A joint status report has been added to the schedule.

Accordingly, the parties are **ORDERED** to follow the schedule set forth below:

November 13, 2024

Service of initial written discovery requests

December 16, 2024	Complete Document Production
December 19, 2024	Deadline to Disclose Intention to use Expert Witnesses
January 17, 2025	Complete Fact Depositions
January 22, 2025	Expert Discovery Begins
January 22, 2025	Joint Status Report Due
February 7, 2025	Completion of all Discovery
March 7, 2025	Complainant's initial brief, proposed findings of fact, and appendix
April 4, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
April 18, 2025	Complainant's reply brief and responses to proposed findings of fact

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Any filing submitted without page numbers, including on exhibits, may be rejected. The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).

2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins, and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

A motion which sets forth good cause to extend the schedule—such as voluminous (defined) or technically challenging document production, or a substantial number of depositions—will be considered if the parties are unable to meet the deadlines above.



Linda S. Harris Crovella
Administrative Law Judge